

HOUSE No. 4008

The Commonwealth of Massachusetts

PRESENTED BY:

Manny Cruz and Joan B. Lovely

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to increasing the local option tax in the city of Salem on the sale of marijuana and marijuana products.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>4/1/2025</i>
<i>Joan B. Lovely</i>	<i>Second Essex</i>	<i>10/23/2025</i>

HOUSE No. 4008

By Representative Cruz of Salem, a petition (accompanied by bill, House, No. 4008) of Manny Cruz (with the approval of the mayor and city council) that the city of Salem be authorized to increase the local option tax on the sale of marijuana and marijuana products in said city. Revenue. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to increasing the local option tax in the city of Salem on the sale of marijuana and marijuana products.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding the provisions of Massachusetts General Law Chapter
2 64N, Section 3 or any regulation, general or special law to the contrary, the City of Salem may,
3 upon the majority vote of its City Council, increase the local option tax from 3% to up to 6% on
4 the retail sale of marijuana and marijuana products by a marijuana retailer to anyone other than a
5 marijuana establishment. Further, in the event the Salem City Council increases the local option
6 tax to an amount in excess of 3%, the City and its marijuana establishments shall be relieved of
7 their obligation found within Massachusetts General Law Chapter 94G, Section 3(d) or any
8 regulation, general or special law, to negotiate and execute a host community agreement setting
9 forth the conditions to have a marijuana establishment within the City of Salem.

10 SECTION 2. This act shall take effect upon its passage.